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Discovery Hearing Transcript

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 38 — Hearing and filing date March 24, 2026

THE CLERK: All rise. The fictional United States District Court for the Eastern District of North Carolina is in session, the Honorable Evelyn Harrow presiding.

THE COURT: We are here on Calder's motion to compel and Cinder Lake's motion to seal. Counsel will address the exact August 21 disclosure, the asserted protections, work product, related discovery, and the requested production period. Nothing said today decides Calder's retaliation claim.

Appearances and Record

MS. ASHE: Nina Ashe for Rhea Calder.

MS. VOSS: Mara Voss for Cinder Lake Health Network, Inc.

THE COURT: I have the public briefs, August 21 letter, nonprivileged chronology, public memorandum and log counterparts, service certificate, and offline provisionally lodged complete exhibits. The complete items have not been placed on a public electronic docket. The public motion identifies the local sealing basis.

Agreed Chronology

THE COURT: The letter was sent August 21, 2025; the Rule 502(d) order entered January 9, 2026; the memorandum copies were exchanged January 29; the log copies February 5; and all four counterparts were filed or lodged February 26. Correct?

MS. ASHE: Yes. The two exchanges were outside CM/ECF.

MS. VOSS: Correct. And the January 9 order is prospective; neither side asks it to change the August letter retroactively.

Calder's Disclosure Theory

MS. ASHE: Cinder Lake invoked outside counsel's review, announced that it found no systemic knowing-submission practice, and described remediation. The organization used counsel's involvement to strengthen its response. We say the letter conveyed the gist of counsel's assessment even without quotation.

The complete files address the same billing concerns and remedial response. Without them, Calder cannot test whether the public conclusion omitted contrary evidence or advice.

Court's Question About Content

THE COURT: Identify the privileged communication actually disclosed.

MS. ASHE: The disclosure is inferential: counsel reviewed, then the organization stated a conclusion and acted. The sequence communicates that counsel's review supported the announced result.

THE COURT: Do you identify words attributed to counsel, a witness statement, or a legal recommendation?

MS. ASHE: Not express words. We contend Rule 502 should not require a quotation when attribution supplies the substance.

Calder on Subject and Fairness

MS. ASHE: The same subject includes the truth of Calder's reports, the investigation's assessment, and remediation. Cinder Lake may tell the regulator and later a factfinder that a counsel-led review found no systemic knowing conduct. Fairness requires the underlying memorandum, source communications, drafts, and advice.

We seek a single ruling because item-by-item litigation would preserve the selective presentation. Confidential handling can continue after production.

Cinder Lake on No Disclosed Communication

MS. VOSS: The letter is Cinder Lake's statement. It says what the company concluded and did; it does not say what Vale advised. One cannot infer the content of a confidential communication merely because counsel performed a review before corporate action.

Rule 502(a) asks first whether protected information was intentionally disclosed. If the answer is no, same subject and fairness do not manufacture that predicate. We do not offer advice as a defense.

Rule 502(d) Boundary

THE COURT: Does the January order protect the August letter?

MS. VOSS: No. It governs later litigation disclosures and neither erases nor creates earlier waiver.

MS. ASHE: Agreed. Our theory depends on the letter itself.

THE COURT: Then the issue is the historical disclosure and its scope. The later protected exchanges allowed adjudication; they are not additional voluntary public disclosures.

Complete Memorandum

MS. ASHE: The completed memorandum is the clearest way to test the announced conclusion.

MS. VOSS: It is a confidential legal communication and opinion work product. The public counterpart identifies each subject. Ordinary records can test the facts. Compelling the whole memorandum because its topic overlaps the letter would expose legal analysis without first identifying disclosed advice.

THE COURT: The complete copy will remain provisionally restricted while I decide.

Source Communications

MS. ASHE: Interview materials show what management knew and whether the conclusion was fair.

MS. VOSS: Witnesses can testify about firsthand facts. Upjohn protects employee communications made so organizational counsel can advise, while leaving the facts discoverable. Our log separately identifies four interviews and their functional subjects.

THE COURT: Calder has not yet deposed all four functional witnesses?

MS. ASHE: No, but contemporaneous notes may be superior.

Work Product

MS. VOSS: The drafts, issue outlines, and litigation assessments expose counsel's selection and theories. Calder has not shown inability to obtain the substantial equivalent of factual material, and opinion work product deserves heightened protection.

MS. ASHE: Waiver reaches the work product used to support the disclosed conclusion. Alternatively, delay and fading memory create need.

THE COURT: I understand the positions. The motion asks for categories rather than a line-by-line factual severance.

Related Discovery

THE COURT: Cinder Lake does not seek to bar Calder from asking witnesses about billing exceptions, remediation, or employment facts?

MS. VOSS: Correct. We oppose only protected communications and disproportionate requests.

MS. ASHE: We ask that waiver apply to any communication on the investigation's conclusions and remediation.

THE COURT: That request would govern documents not yet presented. I will distinguish current files from later ordinary discovery.

Persuasive Authorities

MS. VOSS: Sky Angel analyzes Rule 502 waiver, and Hawkins addresses the proponent's burden and actual disclosure. In re Fluor is unpublished and nonprecedential, but its treatment of a seven-day privilege-production order and undisclosed communications is closely analogous.

MS. ASHE: Fluor is neither binding nor identical. Cinder Lake affirmatively referenced counsel and remediation here.

THE COURT: I will treat Fluor, if at all, only as persuasive and on its actual facts.

Proportionality and Timing

MS. ASHE: The files are already collected and logged. Production can occur within seven days under the protective order, so burden is modest.

MS. VOSS: The harm is disclosure itself, not collection burden. A seven-day deadline would precede meaningful appellate review if the Court orders complete privileged files produced. Document-specific review would avoid that consequence.

THE COURT: The requested date would be April 1 if ordered tomorrow.

Sealing and Public Counterparts

THE COURT: The sealing request is narrow. The public counterparts preserve all twenty logical pages and the public briefs explain the dispute. Public access to the complete text would resolve the privilege question by exposure.

The complete memorandum and log will remain restricted while the motion is adjudicated. That administrative ruling does not determine privilege. The clerk will maintain the offline copies under the standing procedure; no electronic-access representation is made.

Oral Indication

THE COURT: My present view is that Cinder Lake intentionally invoked a counsel-led review, announced its conclusion, and described remediation. I am inclined to find fairness requires disclosure of the investigation materials on that subject. I recognize Cinder Lake's objection that the letter disclosed no communication.

I will issue a written order tomorrow. The written order will control. I am not inclined to bar all related discovery, which must remain subject to ordinary rules.

Closing and Deadline Discussion

MS. VOSS: If the Court compels production, we request time for reconsideration and appellate relief before disclosure.

THE COURT: I anticipate a seven-calendar-day period ending April 1. You may seek appropriate relief, but no automatic stay is granted today.

MS. ASHE: Calder asks that the existing protective order govern production.

THE COURT: It will. Hearing concluded March 24, 2026. The transcript is filed as Docket Entry 38.